

Annual Compliance Certification Report
January 1, 2023 to December 31, 2023



FACILITY NAME: CEMEX Construction Materials South, LLC – Lyons Cement Plant

OPERATING PERMIT NO: 95OPBO082

REPORTING PERIOD: January 1, 2023 to December 31, 2023

I. Facility Status

___ During the entire reporting period, this source was in compliance with **ALL** terms and conditions contained in the Permit, each term and condition of which is identified and included by this reference. The method(s) used to determine compliance is/are the method(s) specified in the Permit.

X With the possible exception of the deviations identified in the table below, this source was in compliance with all terms and conditions contained in the Permit, each term and condition of which is identified and included by this reference, during the entire reporting period. The method used to determine compliance for each term and condition is the method specified in the Permit, unless otherwise indicated and described in the deviation report(s). Note that not all deviations are considered violations.

Operating Permit Unit ID	Unit Description	Deviations Reported ¹		Monitoring Method per Permit? ²		Was Compliance Continuous or Intermittent? ³	
		Previous	Current	YES	NO	Continuous	Intermittent
P017	Dowe Flats Quarry Fugitive Emission Sources & Lyons Quarry			X		X	
P017	Dowe Flats Quarry – Point Source Emissions			X		X	
P018	General Fugitive Emissions Requirements	X		X			X
P000	Raw Material Storage and Handling at Plant Site	X	X	X			X
P001	Primary Crusher (Plant Site)			X		X	
P002	Raw Materials Drying	X		X			X
P003	Secondary Crushing, Screen, Silo, Belt Transfer			X		X	
P004	Raw Material Storage Silos			X		X	
P005	Raw Mill Grinding			X		X	
P006	Homogenizing and Blending			X		X	
P007 & P008	Kiln Burning and Clinker Cooling and Transfer to Storage for Finish Mill	X	X	X			X
P009	Clinker and Gypsum/Additive Silos and Weigh Feeders (Storage and Transfer to Finish Mill)		X	X			X
P010	Sheltered (A-Frame) Clinker Storage and Reclaim		X	X			X
P015	Outdoor Clinker Piles and Handling			X		X	

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		Previous	Current	YES	NO	Continuous	Intermittent
P011 & P012	Cement Finish Mill and Auxiliaries		X	X			X
P013	Cement Silos/Packhouse/Loadout		X	X			X
P014	Material Handling System – Load-In and Load-out		X	X			X
P007A	Handling and Processing of CKD and Raw Material Waste Dust	X		X			X
P050	Cement Rail Car Unloading System			X		X	
	Gasoline Storage Tank			X		X	
	Cold Cleaner Solvent Vats			X		X	
LIS-1	Lime storage silo			X		X	
LIS-2	Lime weigh hopper			X		X	
A-Pit Pump	Diesel fuel-fired engine, rated at 90 hp.			X		X	
DF 6” Pump	Diesel fuel-fired engine, rated at 80 hp			X		X	
DF 8” Pump	Diesel fuel-fired engine, rated at 84 hp			X		X	
Kiln Engine	Natural gas-fired engine, rated at 230 hp (Emergency Engine)			X		X	
Flood Engine	Diesel fuel-fired engine, rated at 99 hp (Emergency Engine)			X		X	
	General Conditions	X	X	X			X
	Insignificant Activities ⁴	X		X			X

¹ If deviations were noted in a previous deviation report, put an “X” under “previous”. If deviations were noted in the current deviation report (i.e. for the last six months of the annual reporting period), put an “X” under “current”. Mark both columns if both apply.

² Note whether the method(s) used to determine the compliance status with each term and condition was the method(s) specified in the permit. If it was not, mark “no” and attach additional information/explanation. **(See additional information below.)**

³ Note whether the compliance status with of each term and condition provided was continuous or intermittent. “Intermittent Compliance” can mean either that noncompliance has occurred or that the owner or operator has data sufficient to certify compliance only on an intermittent basis. Certification of intermittent compliance therefore does not necessarily mean that any noncompliance has occurred.

NOTE:

The Periodic Monitoring requirements of the Operating Permit program rule are intended to provide assurance that even in the absence of a continuous system of monitoring the Title V source can demonstrate whether it has operated in continuous compliance for the duration of the reporting period. Therefore, if a source 1) conducts all of the monitoring and recordkeeping required in its permit, even if such activities are done periodically and not continuously, and if 2) such monitoring and recordkeeping does not indicate non-compliance, and if 3) the Responsible Official is not aware of any credible evidence that indicates non-compliance, then the Responsible Official can certify that the emission point(s) in question were in continuous compliance during the applicable time period.

⁴ Compliance status for these sources shall be based on a reasonable inquiry using readily available information.

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II. Status for Accidental Release Prevention Program:

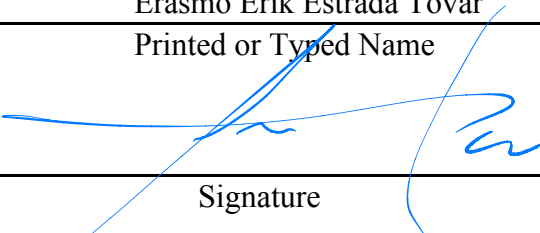
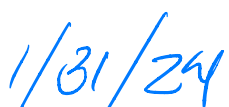
- A. This facility _____ is subject X is not subject to the provisions of the Accidental Release Prevention Program (Section 112(r) of the Federal Clean Air Act)
- B. If subject: The facility _____ is _____ is not in compliance with all the requirements of section 112(r).
1. A Risk Management Plan _____ will be _____ has been submitted to the appropriate authority and/or the designated central location by the required date.

III. Certification

All information for the Annual Compliance Certification must be certified by a responsible official as defined in Colorado Regulation No. 3, Part A, Section I.B. This signed certification document must be packaged with the documents being submitted.

I have reviewed this certification in its entirety and, based on information and belief formed after reasonable inquiry, I certify that the statements and information contained in this certification are true, accurate and complete.

Please note that the Colorado Statutes state that any person who knowingly, as defined in § 18-1-501(6), C.R.S., makes any false material statement, representation, or certification in this document is guilty of a misdemeanor and may be punished in accordance with the provisions of § 25-7 122.1, C.R.S.

Erasmo Erik Estrada Tovar	Plant Manager
Printed or Typed Name	Title
	
Signature	Date Signed

NOTE: All compliance certifications shall be submitted to the Air Pollution Control Division and to the Environmental Protection Agency at the addresses listed in Appendix D of this Permit.